

1 ENGROSSED SENATE
2 BILL NO. 1796

By: Rosino of the Senate

3 and

4 Lawson of the House

5
6 An Act relating to foster care; defining terms;
7 allowing foster parents to use certain caregivers and
8 arrangements for temporary care of foster children;
9 specifying certain time limit on temporary care;
10 requiring certain notice; requiring foster parents to
11 identify certain formal alternate caregiver;
12 specifying requirements for alternate caregivers;
13 requiring certain screenings and home evaluation for
14 alternate caregivers; authorizing respite care by
15 certain foster families; providing for
16 qualifications; authorizing certain informal care
17 arrangements; requiring application of certain
18 parenting standard; prohibiting use of certain
19 informal caregivers; directing promulgation of rules;
20 providing for codification; and providing an
21 effective date.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 1-7-117 of Title 10A, unless
there is created a duplication in numbering, reads as follows:

25 A. As used in this section:

26 1. "Alternate caregiver" means a person, assessed and approved
27 by the Department of Human Services, who for not more than fourteen
28 (14) consecutive days, relieves a foster parent's day-to-day
29 responsibilities by temporarily assuming care and supervision of the

1 child in the custody of the Department. Such term applies only to
2 traditional, contracted, and kinship foster care;

3 2. "Informal care arrangement" means an arrangement a foster
4 parent makes with one or more informal caregivers, who may be
5 friends, neighbors, or relatives, for the foster child's occasional
6 care for a period not to exceed seventy-two (72) hours; and

7 3. "Respite care" means short-term care provided by an approved
8 foster family when foster parents need breaks from day-to-day
9 parenting responsibilities while caring for a child in the custody
10 of the Department.

11 B. 1. Foster parents may use alternate caregivers, use respite
12 care, and make informal care arrangements to temporarily care for
13 their foster children as provided by this section and rules
14 promulgated by the Director of Human Services.

15 2. An individual providing care consecutively for more than
16 seventy-two (72) hours shall be an approved alternate caregiver as
17 provided by subsection C of this section or an approved foster
18 family that provides respite care in accordance with subsection E of
19 this section.

20 3. The foster parent shall notify the Department prior to using
21 an alternate caregiver, respite care, or an informal care
22 arrangement.

23 C. 1. The foster parent shall identify at least one alternate
24 caregiver, but no more than two, who can fulfill the foster parent's

1 role for the foster child placed in the foster home in case of
2 family emergencies, or when the family needs an extended break for
3 up to fourteen (14) consecutive days.

4 2. The foster parent may only use an alternate caregiver who
5 has been approved by the Department. An approved alternate
6 caregiver may only provide care for foster families for which the
7 alternate caregiver has been approved by the Department.

8 3. An alternate caregiver shall successfully complete the
9 screening requirements provided by subsection D of this section and
10 shall meet such qualifications for approval as may be prescribed by
11 the Director through rule.

12 D. The alternate caregiver and each adult household member in
13 the alternate caregiver's home shall successfully complete:

14 1. An Oklahoma State Bureau of Investigation name-based
15 criminal history records search;

16 2. A search of Department records including, but not limited
17 to, child welfare records;

18 3. A search of any applicable registries including, but not
19 limited to, the child care Restricted Registry under Section 405.3
20 of Title 10 of the Oklahoma Statutes, the community services worker
21 registry under Section 1025.3 of Title 56 of the Oklahoma Statutes,
22 and the nursing facility nontechnical services worker registry under
23 Section 1-1950.7 of Title 63 of the Oklahoma Statutes;

1 4. An evaluation of the home to assess the location, condition,
2 and capacity to accommodate the foster child; and

3 5. Any other requirements prescribed by the Director through
4 rule.

5 E. 1. Respite care may only be provided by a foster family
6 approved by the Department.

7 2. A foster family is not limited to providing respite care to
8 only one foster family.

9 3. To be approved to provide respite care, a foster family
10 shall meet such qualifications as may be prescribed by the Director
11 through rule.

12 F. 1. Foster parents may make informal care arrangements with
13 informal caregivers for the foster child's occasional care in
14 accordance with this subsection and rules promulgated by the
15 Director.

16 2. Foster parents shall apply the reasonable and prudent parent
17 standard when selecting an informal caregiver to care for the foster
18 child and shall ensure he or she possesses the maturity and skills
19 to address the child's needs.

20 3. The foster parent shall not use an informal caregiver who
21 the Department of Human Services has determined is unsafe.

22 G. The Director shall promulgate rules as necessary to
23 implement the provisions of this section.

24 SECTION 2. This act shall become effective November 1, 2026.

1 Passed the Senate the 10th day of March, 2026.

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4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives